

25STCV19450 25STCV19450

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Case Number: 25STCV19450 Hearing Date: July 6, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 6, 2026 TRIAL DATE: NOT SET

CASE: Tony M. Dismuke et al. v. FCA US, LLC,
et al.

CASE

NO.: 25STCV19450

DEMURRER TO FIRST AMENDED

COMPLAINT AND MOTION TO STRIKE

MOVING

PARTY: Defendants FCA US, LLC and Scott

Robinson Chrysler Dodge Jeep Ram

RESPONDING

PARTY(S): Plaintiffs

Tony M. Dismuke and Konjit Austin-Dismuke.

TENTATIVE RULING:

Defendants'

Demurrer to the First Amended Complaint is SUSTAINED with leave to amend as to the fourth cause of action and otherwise OVERRULED.

Plaintiffs

shall have thirty (30) days leave to amend the pleadings.

Defendants'

Motion to Strike is DENIED AS MOOT.

Moving Parties to give notice.

BACKGROUND

This

is a lemon law action.

DISCUSSION:

Demurrer

Defendants demur to the First Amended

Complaint in its entirety. The Court sustains the demurrer as to the negligent repair cause of action only and otherwise overrules the demurrer.

Legal

Standard

A

demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

Statute

of Repose

Defendants argue that the Song-Beverly causes of action are barred by the statute of repose. Defendants have not shown that Code of Civil Procedure section 871.21 can be applied retroactively to this case consistent with constitutional principles.

Assembly

Bill 1755, effective January 1, 2025, codified Chapter 12 of Title 10, Part 2 of the Code of Civil Procedure, adding sections 871.20 through 871.28. Section 871.21, as then enacted, stated:

(a) An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.

(b) Notwithstanding subdivision

(a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c) The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.

(AB

1755, 2024 Stat. Ch. 938 § 1.) AB 1755 was amended by Senate Bill 26, effective April 2, 2025, revising section 871.20, and adding sections 871.29 and 871.30 to add opt-in provisions to these laws. (SB 26, 2025 Stats Ch. 1 §§ 2, 4-5.) As amended, section 871.20 provides:

(a) Notwithstanding any other

law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (a) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply

to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

(Code

Civ. Proc. § 871.20.) Section 871.29 establishes a procedure for manufacturers to elect to proceed under these laws for future vehicle models for a period of five years at a time. Section 871.30 establishes a similar procedure for manufacturers to elect to proceed under these laws for claims pertaining to vehicles sold in 2025 or earlier.

Defendants argue that this case cannot proceed

because it is premised on claims about a motor vehicle purchased more than six years before the filing of the Complaint, in violation of Section 871.21.

Defendants'

argument only works if Section 871.21 can be applied retroactively. And this is where the argument runs into a problem. There is a presumption against retroactive application unless the Legislature plainly provides express language that is a clear and unavoidable implication of retroactivity. (*Quarry v. Doe* 1¿(2012)

53 Cal. 4th 945, 955.) "In general, application of a law is retroactive only if it attaches new legal consequences to, or increases a party's liability for, an event, transaction, or conduct that was completed before the law's effective¿date."¿(Id.) "Ordinarily, considerations of basic fairness militate against such retroactive changes." (Id.) "[W]here the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes

effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” (Rosefield Packing Co. v. Superior Court (1935) 4 Cal.2d 120, 122-23.)

Here, Plaintiffs would not have a reasonable opportunity to exercise a remedy if the statute were applied retroactively. Instead (on Defendants’ theory) the action would simply be barred. In this situation, the Court cannot retroactively apply the statute. The Court therefore rejects Defendants’ argument, and does not find that the statute of repose bars the relevant claims.

Statute
of Limitations (Express Warranty)

Defendants argue that the express warranty claims are barred by the statute of limitations. The Court disagrees

Express warranty claims are subject to a four-year statute of limitations. (Comm. Code § 2725; Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 215.) Under subdivision (b) of section 2725 of the Commercial Code, a breach of warranty occurs—and thus, a claim accrues—“when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance[,] the cause of action accrues when the breach is or should have been discovered.” (Comm. Code § 2725(b).) Express warranties under the Song-Beverly Act are warranties explicitly extending to future performance of the goods. (Krieger, *supra*, 234 Cal.App.3d at 218.)

“A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1324.)

Defendants

argue that the pleadings disclose a statute of limitations defense and do not plead any basis to toll the statute. The Court disagrees. The pleadings allege that the defect persisted despite repair attempts. The pleadings also allege that the manufacturer Defendant issued numerous Technical Service Bulletins which purported to address the vehicle's symptoms but attributed the source to other causes. The pleadings allege that these TSBs misdirected consumers and prevented discovery of the defects. Construed favorably, as required on demurrer, these allegations are sufficient to invoke the delayed discovery rule.

Statute

of Limitations (Implied Warranty)

Defendants contend that the implied warranty claim is barred by the four year statute of limitations. The Court agrees.

Implied

warranty claims are also subject to a four-year statute of limitations. (Comm. Code § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.) Under subdivision (b) of section 2725 of the Commercial Code, a breach of warranty occurs—and thus, a claim accrues—“when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance[,] the cause of action accrues when the breach is or should have been discovered.” (Comm. Code § 2725(b).) Unlike express warranty claims, an implied warranty does not “explicitly extend to future performance of the goods.” (*Cardinal Health 301, Inc. v. Tyco Elecs. Corp.* (2008) 169 Cal.App.4th 116, 134.)

The pleadings on their face allege entry into a warranty contract more than four years before the filing of the Complaint. Therefore, the implied warranty claim is barred on the face of the Complaint. *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 does not detract from this conclusion. In *Mexia*, the central question before the Court of Appeal was whether the one-year duration of an implied warranty under Civil Code section 1791.1 operated as a statute of limitations to bar any action brought after one year of purchase, notwithstanding a failure to discover a

latent defect. (Mexia, supra, 174 Cal.App.4th at 1308.) There was no dispute that the defect was discovered and the action brought within the four-year statute of limitations under Commercial Code section 2725. (Id. at 1306-1307.) The Court therefore finds that the Complaint on its face demonstrates that the implied warranty cause of action is barred by the statute of limitations.

Statute
of Limitations (Fraud)

Defendants
argue that the fraud claim is barred by the statute of limitations. The Court disagrees

Code
of Civil Procedure section 338(d) states that a party has three years to bring an action for relief on the ground of fraud or mistake, and that “[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc. § 338(d) [emphasis added].)

Defendants
argue that the pleadings disclose a statute of limitations defense and do not plead any basis to toll the statute. The Court disagrees. The pleadings allege that the defect persisted despite repair attempts. The pleadings also allege that the manufacturer Defendant issued numerous Technical Service Bulletins which purported to address the vehicle's symptoms but attributed the source to other causes. The pleadings allege that these TSBs misdirected consumers and prevented discovery of the defects. Construed favorably, as required on demurrer, these allegations are sufficient to invoke the delayed discovery rule.

Sufficiency
of Pleadings (Fraud)

Defendants argue that the fraud cause
of action is inadequately pled. The Court rejects this argument.

1. Duty to Disclose

There

are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; or (4) when the defendant makes partial representations but also suppresses some material fact." (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.) A duty to disclose may also arise when a defendant possesses or exerts control over material facts not readily available to the plaintiff. (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1198, 1199.)

Defendants argue that the pleadings fail to establish a duty to disclose any concealed facts. Ordinarily, a duty to disclose absent a fiduciary relationship "presupposes the existence of [a] relationship between the plaintiff and defendant in which a duty to disclose can arise." (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311.) Defendants rely on the general rule to argue that, because it is the manufacturer of the vehicle, there was not a "direct dealing" between the parties that gives rise to a duty to disclose. (See *Bigler-Engler*, *supra*, at 311.) Defendants' reliance on this general rule as stated in *Bigler-Engler* is misplaced, because it ignores that California courts have developed a distinct doctrine that applies when, as here, an original seller manufactures or sells a product to whom it reasonably expects the product to be resold.

A vendor has a duty to disclose material facts "not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold." (*OCM Principle Opportunities Fund v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859-60.)

The duty to disclose to subsequent purchasers is limited: the plaintiff must show that the seller had special "reason to expect" that the fraud will be passed onto subsequent purchasers. (*Geernaert v. Mitchell* (2007) 31 Cal.App.4th 601, 607-08.) Mere foreseeability is insufficient. (*Id.* [citing *Restatement (Second) of Torts* § 305 cmt. d (1977)].) In determining whether the seller had "reason to expect" that the fraud will be passed onto subsequent purchasers, courts generally consider two factors: "(1) the extent of the seller's knowledge of resale to a particular person or class of persons and (2) the likelihood that the particular misrepresentation (or concealment) would be passed on to them." (*Id.* at 608.)

Here,

the essential allegation is that the plaintiff is a subsequent purchaser of a product manufactured by the manufacturer Defendant. Moreover, as alleged, that Defendant clearly had reason to expect that the fraud could be passed on. The manufacturer Defendant entered into a warranty agreement with them regarding the subject vehicle. Thus, the pleadings have sufficiently alleged a duty of disclosure on the manufacturer Defendant's part.

2. Specificity

Defendants

argue that the pleadings do not allege fraudulent concealment with adequate specificity. Defendants rely on the general rule for pleading fraud against a corporation, which requires a plaintiff to allege the identity of the speaker, their authority, to whom they spoke, what they said, and when it was said. (See, e.g., *Tarmann v. State Farm Mut. Auto Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) However, this rule applies differently when the claim of fraud is based upon an assertion of fraudulent concealment. (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384 ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"].) Instead, such details, in the context of a fraudulent concealment claim, "are properly the subject of discovery, not demurrer." (*Id.* at 1384-85.)

Moreover,

the specificity requirement is "relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts." (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 27.) That is the case here.

Negligent

Repair

Defendants also demur to the negligent

repair cause of action as barred by the economic loss rule. The Court agrees.

While all reasonable inferences must be drawn in Plaintiffs' favor, the only inference available from the allegation that Plaintiffs delivered the vehicle to Scott for repair (Complaint ¶ 83), is that Plaintiffs and Scott had some contractual relationship of which the repairs were part. Thus, on its face,

this allegation appears to fall within the economic loss rule. (See Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.)

Leave
to Amend

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318). When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Accordingly, California law imposes the burden on the plaintiffs to demonstrate the manner in which they can amend their pleadings to state their claims against a defendant. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) "Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

In

deference to the strong precedent in favor of amendment where a fair opportunity has not been given, the Court will grant leave to amend.

Meet
and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a).)

However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

The

declaration of Felicia M. Borrero states that counsel for Defendants attempted to meet and confer with opposing counsel via telephone, but was unsuccessful in resolving this dispute. This is sufficient.

Conclusion

Accordingly, Defendants' Demurrer to the First Amended Complaint is SUSTAINED with leave to amend as to the fourth cause of action and otherwise OVERRULED.

Motion
to Strike

Defendants move to strike portions of the pleadings pertaining to punitive damages.

Because the Court has sustained portions of the demurrer with leave to amend, the motion to strike is DENIED AS MOOT.

CONCLUSION:

Accordingly, Defendants' Demurrer to the First Amended Complaint is SUSTAINED with leave to amend as to the fourth cause of action and otherwise OVERRULED.

Plaintiffs
shall have thirty (30) days leave to amend the pleadings.

Defendants'
Motion to Strike is DENIED AS MOOT.

Moving Parties to give notice.

IT IS
SO ORDERED.

Dated: July 6, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.